

26STCV12858 26STCV12858

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-09-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C515%2C09%2F21%2F2026

Source SHA-256: fdd8a41f8dbe9f60d196bf900b77f1e69914305d0074621f050844c02fe7d491

Case Number: 26STCV12858 Hearing Date: September 21, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Strike

The Motion to Strike is denied.

BACKGROUND

Plaintiffs Mercedes Moya and Noy Elbaz (Plaintiffs) filed this action against Katherine Calvert (Defendant), alleging that Defendant drove into their occupied parked vehicle while under the influence of alcohol or another intoxicating substance.

The causes of action in the First Amended Complaint (FAC) are: (1) Motor Vehicle; and (2) General Negligence.

Defendant filed a Motion to Strike. Plaintiffs filed an Opposition.

LEGAL STANDARD

The Court may “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike “shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).) In construing a pleading, its allegations “must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) Accordingly, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

ANALYSIS

I. Added Allegations

Defendant contends that the factual allegations the FAC added after the Complaint are of questionable veracity, and that their belated appearance underscores the conclusory character of the punitive damages demand. Plaintiffs argue that a motion to strike cannot resolve a dispute over the truth of what is pleaded, and that the FAC contradicts nothing in the Complaint.

The grounds for a motion to strike must appear on the face of the challenged pleading or in matter subject to judicial notice. (Code Civ. Proc., § 437, subd. (a).) Defendant disputes “the factual basis and veracity of these newly alleged matters.” (Margaryan Decl., ¶ 6.) However, counsel’s disbelief is not a defect on the face of the FAC, and the declaration offers no judicially noticeable matter concerning Defendant’s condition or her conduct at the scene. The Court therefore takes the FAC’s allegations as true for purposes of this Motion.

Nor does the amendment itself give a ground to strike. Under the sham pleading doctrine, a plaintiff may not avoid a defect by filing an amended pleading that omits harmful allegations or pleads facts inconsistent with the superseded one, absent a satisfactory explanation. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-426.) Applying the doctrine requires a comparison of the two pleadings, and the Court takes judicial notice of the superseded Complaint as a record of this court. (Evid. Code, § 452, subd. (d).) Here, the FAC omits nothing adverse to Plaintiffs and contradicts nothing in the Complaint. Plaintiffs alleged in the Complaint that Defendant drove while under the influence of alcohol or another intoxicating substance and that she knowingly drove while her faculties were impaired. (Compl., Third Cause of Action, ¶¶ 1, 3.) The FAC pleads particulars of that same theory. Defendant identifies no earlier allegation that she was sober, that she was unaware of her impairment, or that she remained at the scene.

Defendant also states that the Complaint contained no allegation that she drove at an unsafe speed. (Margaryan Decl., ¶ 3.) Plaintiffs alleged in the Complaint that Defendant’s conduct violated Vehicle Code section 22350, and they quoted that section’s prohibition on driving at a speed greater than is reasonable or prudent. (Compl., Second Cause of Action.) Thus, the amendment history gives no ground to strike.

II. Punitive Damages

Defendant contends that the FAC pleads no specific facts showing malice or oppression, and that an allegation of impaired driving standing alone will not support punitive damages. Plaintiffs argue that the FAC alleges knowing impaired driving, observable indicia of impairment, a collision with an occupied parked vehicle, and a departure from the scene before a sobriety test could be administered.

Punitive damages are available in an action for the breach of an obligation not arising from contract “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a).) Malice means “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id., subd. (c)(1).) Likewise, oppression means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Id., subd. (c)(2).) The adjective “despicable” is “a powerful term that refers to circumstances that are ‘base,’ ‘vile,’ or ‘contemptible.’” (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The Legislature added that requirement in 1987. It operates as “a new substantive limitation on punitive damage awards,” so that absent an intent to injure the plaintiff, malice “requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests.” (Ibid.) “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

In Taylor v. Superior Court (1979) 24 Cal.3d 890, 892, the Supreme Court held that “the act of operating a motor vehicle while intoxicated may constitute an act of ‘malice’ under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences.” A plaintiff proceeding on that basis “must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences.” (Id. at pp. 895-896.) One who “wilfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply

impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others.” (Id. at p. 897.) A history of prior arrests, convictions, and mishaps may heighten the probability and foreseeability of an accident. However, the Supreme Court declined to treat those aggravating factors as “essential prerequisites to the assessment of punitive damages in drunk driving cases.” (Id. at p. 896.) The Supreme Court decided Taylor before the 1987 amendment. Despicability is therefore a separate question the FAC must also satisfy.

“Proof of negligence, even gross negligence, or recklessness is insufficient to warrant an award of punitive damages.” (Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 87.) “The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable.” (Id. at p. 89.)

Defendant reads Dawes to require driving of the kind alleged there. (Mot., at p. 7.) The driver in that case ran a stop sign and drove at more than 65 miles per hour through heavy pedestrian and bicycle traffic in a 35-mile-per-hour zone. (Dawes, supra, 111 Cal.App.3d at p. 86.) On those allegations the Court of Appeal concluded that “[t]he risk of injury to others from Mardian’s conduct under the circumstances alleged was probable.” (Id. at p. 89.) Notably, it then directed that the punitive damages allegations be reinstated. (Id. at p. 92.)

However, the Court of Appeal decided Dawes under Taylor and could not narrow it. In Dawes the manner of driving made the risk probable. In Taylor the probability came from the combination the Supreme Court described, “sharply impaired physical and mental faculties with a vehicle capable of great force and speed.” (Taylor, supra, 24 Cal.3d at p. 897.) The Supreme Court then declined to require aggravating circumstances beyond that combination. (Id. at p. 896.) Thus, a pleading that alleges knowing impaired driving alleges probable danger, and it need not allege a manner of driving as well.

Here, Plaintiffs allege facts sufficient to support the punitive damages demand. First, they allege that Defendant knew she had consumed alcohol or an intoxicating substance and knew that she would thereafter operate a motor vehicle on a public street. Second, they allege that they personally observed slurred and thickened speech, unsteady balance, and delayed, confused, or

nonresponsive answers to simple questions immediately after Defendant drove into their stationary vehicle. Finally, they allege that they asked Defendant to remain until law enforcement arrived so that a sobriety test could be administered, that she refused, and that she drove away before officers arrived. (FAC, at p. 5.)

Those allegations plead the awareness and the deliberate choice Taylor requires. On Plaintiffs' allegations, Defendant knew that she had impaired herself and that she would then drive, and she drove anyway. The observed speech, balance, and responses describe how far the impairment had gone by the time of the collision. Moreover, the refusal to remain for a sobriety test supports the inference that Defendant knew when she drove that she was impaired. The Court therefore concludes that the FAC alleges malice within the meaning of Civil Code section 3294, subdivision (c)(1).

Defendant also contends that the FAC pleads conclusions rather than facts. (Mot., at pp. 6, 8.) "Pleading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation," and "[the] distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree [Citations.].'" (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.) However, Plaintiffs do not rely on the statutory labels alone. They allege what Defendant knew before she drove, what they observed afterward, and what Defendant did at the scene.

Defendant further contends that the conduct alleged does not rise to the level of despicable conduct. Considering the FAC in whole and in context, Plaintiffs allege that Defendant consumed alcohol or another intoxicating substance knowing she would then drive on a public street, that she drove while visibly impaired, and that she struck a vehicle parked at the curb with both Plaintiffs seated inside it. A trier of fact could find that conduct base, vile, or contemptible.

Plaintiffs must ultimately prove malice by clear and convincing evidence. (Civ. Code, § 3294, subd. (a).) The question on this Motion is whether the FAC alleges facts that, if proved, would meet that standard. The Court concludes that it does.

Accordingly, the Motion to Strike is denied.

CONCLUSION

The Motion to Strike is denied.